Commonwealth of Massachusetts

AFFIDAVIT OF INDIGENCY

AND REQUEST FOR WAIVER, SUBSTITUTION
OR STATE PAYMENT OF FEES & COSTS

*(Note: If you are **currently confined in a prison or jail** and are not seeking immediate release under G.L. c. 248 §1, but you are suing correctional staff and wish to request court payment of "normal" fees (for initial filing and service), **do not use this form**. Obtain separate forms from the clerk.)*

_____ _____
Court Case Name and Number (if known)

Name of applicant: _____

Address: _____
(Street and number) (City or town) (State and Zip)

SECTION 1: Under the provisions of General Laws, Chapter 261, Sections 27A-27G, I swear (or affirm) as follows: **I AM INDIGENT** in that (*check only one*):

☐ (A) I receive public assistance under (*check form of public assistance received*):

- ☐ Transitional Aid to Families with Dependent Children (TAFDC)
- ☐ Emergency Aid to Elderly, Disabled or Children (EAEDC)
- ☐ Massachusetts Veterans Benefits Programs; **or**
- ☐ Medicaid (MassHealth)
- ☐ Supplemental Security Income (SSI)

☐ (B) My income, less taxes deducted from my pay, is $ _____ per ☐ week ☐ biweekly ☐ month ☐ year *(check the period that applies)* for a household of ____ persons, consisting of myself and ____ dependents; which income is at or below the court system's poverty level; (*Note: The court system's poverty levels for households of various sizes must be posted in this courthouse. If you cannot find it, ask the clerk or check online at:* http://www.mass.gov/courts/sjc/docs/povertyguidelines.pdf. *The court system's poverty level is updated each year.)*

(List any other available household income for the checked period on this line: $ _____); **or**

☐ (C) I am unable to pay the fees and costs of this proceeding, or I am unable to do so without depriving myself or my dependents of the necessities of life, including food, shelter and clothing.

IF YOU CHECKED (C), YOU MUST ALSO COMPLETE THE SUPPLEMENT TO THE AFFIDAVIT OF INDIGENCY.

SECTION 2: (*Note: In completing this form, please be as specific as possible as to fees and costs known at the time of filing this request. A supplementary request may be filed at a later time, if necessary.)*

I request that the following **NORMAL FEES AND COSTS** be waived (not charged) by the court, or paid by the state, or that the court order that a document, service or object be substituted at no cost (or a lower cost, paid for by the state): *(Check all that apply and, in any "$____" blank, indicate your best guess as to the cost, **if known**.)*

☐ Filing fee and any surcharge. $ _____

☐ Filing fee and any surcharge for appeal. $ _____

☐ Fees or costs for serving court summons, witness subpoenas or other court papers. $ _____

☐ Other fees or costs of $ _____ for *(specify)*: _____

_____

☐ Substitution *(specify)*: _____

_____

SECTION 3: I request that the following **EXTRA FEES AND COSTS** either be waived (not charged), substituted or paid for by the state:

☐ Cost, $ _____ , of expert services for testing, examination, testimony or other assistance *(specify)*:

_____

☐ Cost, $ _____ , of taking and/or transcribing a deposition of *(specify name of person):*

_____

☐ Cassette copies of tape recording of trial or other proceeding, needed to prepare appeal for applicant **not** represented by Committee for Public Counsel Services (CPCS-public defender).

☐ Appeal bond

☐ Cost, $ _____, of preparing written transcript of trial or other proceeding

☐ Other fees and costs, $ _____ , for *(specify)*: _____

_____

☐ Substitution *(specify)* _____

Date signed	Signed under the penalties of perjury x_____

By order of the Supreme Judicial Court, all information in this affidavit is CONFIDENTIAL. Except by special order of a court, it shall not be disclosed to anyone other than authorized court personnel, the applicant, applicant's counsel or anyone authorized in writing by the applicant.

This form prescribed by the Chief Justice of the SJC pursuant to G.L. c. 261, § 27B. Promulgated March , 2003.
Fillable PDF created August 2013.